

**BEFORE THE  
FEDERAL MARITIME COMMISSION**

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|-----------------------------------|---|------------------|
| SAMSUNG ELECTRONICS AMERICA, INC. | ) |                  |
|                                   | ) |                  |
|                                   | ) |                  |
| v.                                | ) | Docket No. 23-01 |
|                                   | ) |                  |
| SM LINE CORPORATION               | ) |                  |
|                                   | ) |                  |
| Respondent.                       | ) |                  |
|                                   | ) |                  |

**SEA’S MOTION REQUESTING THE PRESIDING OFFICER ISSUE A THIRD-PARTY  
SUBPOENA TO SEALEAD SHIPPING USA, INC. FOR THE LIMITED PURPOSE OF  
LOCATING MR. YOON-JAI “MARK” LEE**

Complainant, Samsung Electronics America, Inc. (“SEA”), submits this Motion Requesting the Presiding Officer Issue a Subpoena *Duces Tecum* and *Ad Testificandum* to Third-Party SeaLead Shipping USA, Inc. (“SeaLead”) for the Limited Purpose of Locating Mr. Yoon-Jai “Mark” Lee (“Motion”), along with the Declaration of Allison N. Skopec (“Skopec Decl.”). The Motion is filed following a meet and confer and in connection with the status conference ordered by the Presiding Officer on September 24, 2024, when it granted Complainant’s Motion Requesting the Presiding Officer Issue a Subpoena After the Discovery Cut-off (“Lee Subpoena Motion”). Despite SEA’s considerable and sustained efforts, as detailed in the Skopec Declaration, Mr. Lee has not been personally served with the Presiding Officer’s subpoena. Nor has Mr. Lee answered e-mails to his verified, current email address at SeaLead wherein SEA advised of his deposition noticed for October 10, 2024.

Seeking narrowly tailored subpoena information from the subsidiary of a Federal Maritime Commission-regulated common carrier is appropriate under the circumstances.

**FACTS**

**I. Mr. Mark Lee**

On September 12, 2024, SEA filed its Lee Subpoena Motion in order take essential deposition

testimony from former SM Line Corporation (“SM Line”) Senior Vice President, Mr. Yoon-Jai (“Mark”) Lee. October 17, 2023. *See* Dkt. 113; *see also* Skopec Decl. ¶ 4. On September 23, 2024, Administrative Law Judge Alex Chintella granted SEA’s Lee Subpoena Motion, stating that the motion was not made due to “lack of diligence.” Dkt. 115. The Presiding Officer further emphasized the importance of Mr. Lee’s testimony in the context of this lawsuit, stating that “the evidence SEA is seeking is directly relevant and material. During the time period relevant to this proceeding, Mr. Lee was the Senior Vice President/Chief Executive of Sales/Operations at SM Line. In that capacity, based on the testimony of other SM Line employees, he was involved with the preparation of a plan that the alleged purpose of which was to use detention and demurrage charges not to incentivize freight fluidity, but to maximize income.” *Id.* at p. 2. The Presiding Officer recognized that Mr. Lee is essentially the missing piece of the puzzle in terms of building a complete record for the Commission and there is a genuine need to depose Mr. Lee not only because of his important role, but also because SM Line disputes his importance.

SEA undertook considerable efforts to secure the deposition of Mr. Lee by October 10 (the date noticed for his deposition), but has been unable to successfully contact him via every means practicable including (1) email, (2) phone, (3) his office, and (4) his only U.S. home address listed for the last two years. Skopec Decl. ¶¶ 7-20. SEA even went to great lengths to undertake surveillance efforts of Mr. Lee’s office and was unable to locate him that way. *Id.* at ¶¶ 13-15. In sum, SEA has attempted to serve Mr. Lee at his office and home address four times, and spent two days surveilling his office place in attempt to resolve this issue. *Id.* at ¶ 11, 12, 16, 19, 20. Mr. Lee has managed to dodge all of these attempts, making it necessary to file this Motion.

At this juncture, the most viable avenue for obtaining information on his U.S. whereabouts is directly from his employer, SeaLead, who can provide his current address and/or other contact information so his deposition can be taken without further delay.

## **II. SeaLead**

SeaLead is a subsidiary of SeaLead Shipping Pte Ltd. In an August 5, 2024 press release, SeaLead Shipping Pte Ltd. boasted regarding its “container line market share and expanding business in the United States, stating ‘[r]elatively new to the global shipping line sector, SeaLead has grown rapidly in recent years and is currently ranked number 16 by industry expert Alphaliner.’”<sup>1</sup> See Skopec Decl. ¶ 6. Notably, SeaLead Shipping Pte Ltd. is a company regulated by the Federal Maritime Commission with the FMC number 029200. SeaLead Shipping Pte Ltd.’s tariff is published on [dpiusa.com](https://www.fmc.gov/dpiusa.com), and the company states on that website that the FMC organization number was first associated with a tariff on May 5, 2021, but updated on May 17, 2024. When the Presiding Officer granted the Lee Subpoena Motion, he stated that it was the FMC’s “responsibility . . . to inquire into and consider all relevant facts” when deciding to exercise his discretion to allow a subpoena post-discovery cutoff for the limited purpose of deposing Mr. Lee. Dkt. 115 at p. 2. Further, as an FMC-regulated entity that is a self-proclaimed “a fast-growing global shipping line,”<sup>2</sup> it should be in SeaLead’s best interest to provide basic human resources information in connection with its new Managing Director’s whereabouts in order to aid the fact finding work in this administrative proceeding.

### **ARGUMENT**

Granting this subpoena for the limited purpose of obtaining Mr. Lee’s contact information and office practices is not burdensome on SeaLead as they maintain this information in the general course of its business. This is SEA’s last resort to expediently secure Mr. Lee’s deposition as he has continually evaded contact with SEA despite its numerous and prolonged attempts to get in touch with him. Since Mr. Lee is still nowhere to be found despite being informed of his legal obligations to

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<sup>1</sup> <https://www.sea-lead.com/key-management-transition-usa/>.

<sup>2</sup> *Id.*

respond to the subpoena, SEA seeks to take this reasonable step to obtain contact and location information by the only means left available to it. *Id.* at ¶.

Federal Rule of Civil Procedure 45 governs when discovery at issue is a subpoena on a third-party. *Heard v. Costco Wholesale Corp.*, No. 2:19-cv-00673-RFB-DJA, 2020 WL 515841, at \*1 (D. Nev. Jan. 31, 2020) (quoting *Painters Joint Committee v. Employee Painters Trust Health & Welfare Fund*, Case No. 2:10-cv-01385-JCM-PAL, 2011 WL 4573349 at \*5 (D. Nev. Sept. 29, 2011) (“It is well established that the scope of discovery under a subpoena issued pursuant to Rule 45 is the same as the scope of discovery allowed under Rule 26(b)(1)”). A party requesting a third-party subpoena cannot simply go on a “fishing expedition,” and in crafting subpoenas “parties must always carefully tailor a subpoena’s scope, both temporally and substantively, and echo[] the current proportionality analysis that the Court is required to conduct.” *Heard* at \*2. For example, in *Hansen Beverage Co. v. Innovation Ventures, LLC*, the court found that serving “virtually identical document requests” upon multiple third-parties that were not “individually tailored” was merely a “fishing expedition to harass an entity not a party to [the] case.” No. 08-cv-1166-IEG (POR), 2009 WL 1916230 at \*1 (S.D. Cal. Jul. 1, 2009).

Mindful of these fishing expedition safeguards on third-parties, SEA seeks specific information related to Mr. Lee’s contact information and SeaLead is the only entity practicable to provide this information after SEA’s extensive efforts to secure this information on its own. Further, third-parties are often called upon for limited subpoenas if they have particular information related to contact details for a targeted individual. *See AF Holdings LLC v. Doe*, No. 2:12-cv-01073 KJM KJN, 2012 WL 1910452, at \*3 (E.D. Cal. May 25, 2012) (finding good cause to support permitting a plaintiff to “conduct limited, expedited discovery” with regard to a third-party in order to gather an individual’s “actual identity and contact information” and collecting cases similarly allowing third-party subpoena relief for contact information).

Mr. Lee's lack of responsiveness or regard for the law thus necessitates SEA to file this Motion, seeking critical contact information related to Mr. Lee. SEA does not intend to create any unnecessary burden on SeaLead beyond simply providing Mr. Lee's contact information, which it is sure to have since these are normal business records to maintain on top of his elevated role as Managing Director as publicly announced in August 2024. Skopec Decl. at ¶ 6. It is within the Presiding Officer's discretion to issue a third-party subpoena to SeaLead to enable SEA to obtain the contact information necessary to secure Mr. Lee's deposition as ordered by ALJ Chintella. If, for some reason, there is no document with Mr. Lee's California (or elsewhere) address, SEA also seeks a subpoena *ad testificandum* from a SeaLead employee for the narrow and limited purpose of addressing Mr. Lee's arrangements with SeaLead in his Managing Director capacity. The very brief deposition would ask questions concerning:

- His human resources file records only with respect to his home address(es);
- SeaLead's policy as to in-office work or remote work;
- Any special arrangements made for Mr. Lee as Managing Director concerning his work at the office; and
- Any other relief the FMC deems necessary in order to ascertain Mr. Lee's whereabouts.

SEA requests the Presiding Officer exercise that discretion with for this limited issue.

#### **MEET AND CONFER CERTIFICATION**

On October 10, 2024, counsel for SEA and SM Line met and discussed this Motion. On October 11, lead counsel for SM Line conveyed the following: "SM Line takes no position on SEA's particularly limited motion to subpoena Sea Lead's human resources department's records in order to confirm the whereabouts (ie. residence) of Mr. YJ Lee. However, SM Lines reserves its rights to object or oppose any other motions, claims, or actions that SEA may pursue in the future beyond this limited motion."

Dated: October 11, 2024

Respectfully submitted,

**HOLLAND & KNIGHT LLP**

By: /s/ Christopher R. Nolan  
Christopher R. Nolan  
Allison N. Skopec  
Chiara Kalogjera-Sackellares  
HOLLAND & KNIGHT LLP  
31 West 52nd Street  
New York, NY 10019  
Telephone: (212) 513-3200  
chris.nolan@hklaw.com  
allison.skopec@hklaw.com  
chiara.sackellares@hklaw.com

Gerald A. Morrissey III  
Carrol P. Hand  
Kristine O. Little  
HOLLAND & KNIGHT LLP  
800 17th Street N.W., Suite 1100  
Washington, D.C. 20006  
Telephone: (202) 469-5497  
gerald.morrissey@hklaw.com  
carrol.hand@hklaw.com  
kristine.little@hklaw.com

## CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document on counsel at the following email addresses:

Wook Chung  
Vincent M. DeOrchis  
Kaspar Kielland  
Matteo Bonuzzi  
Layal Ramirez

Montgomery McCracken Walker & Rhoads LLP  
427 Madison Avenue, 24th Floor  
New York, New York 10022  
WChung@mmwr.com;  
VDeOrchis@mmwr.com;  
KKielland@mmwr.com;  
MBonuzzi@mmwr.com  
lramirez@mmwr.com

Executed: October 11, 2024

/s/ Allison N. Skopec  
Allison N. Skopec